



CHAPTER viii.

An Act to authorise the closing and disposal of the Church of St. George the Martyr in the City of Oxford and for other purposes. A.D. 1919
[29th May 1919.]

WHEREAS the church of Saint George the Martyr in the city of Oxford in the diocese of Oxford was erected in or about the year one thousand eight hundred and forty-nine in the parish of Saint Mary Magdalene in the said city as a chapel of ease for that parish:

And whereas the said church was consecrated in the year one thousand eight hundred and fifty and the right of presentation to the incumbency of the said church is vested in the dean and chapter of the cathedral church of Christ in Oxford as the patrons of the living of Saint Mary Magdalene:

And whereas the resident population of the said parish has diminished since the erection of the said church and the parish church of the said parish is now adequate for the accommodation of such resident population:

And whereas certain commissioners were on the seventh day of December one thousand eight hundred and ninety-nine appointed by the lord bishop of Oxford by commission under his episcopal seal to inquire into (amongst others) the question whether the existence of the said church of Saint George the Martyr was necessary for the spiritual wants of the inhabitants of the said parish of Saint Mary Magdalene:

And whereas the said commissioners reported to the said lord bishop that they considered the existence of the said church was not necessary for such spiritual wants:

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And whereas it is expedient that effect should be given to the said report by authorising the disposal of the said church as by this Act provided :

And whereas by an agreement dated the sixth day of November one thousand nine hundred and eighteen and made between the Reverend Arthur Herman Gilkes the vicar of the said parish and William Tichborne Upton and Louis Ramsay Vincent the churchwardens of the said parish of the one part and the mayor aldermen and citizens of the said city of Oxford of the other part the said Vicar and Churchwardens have agreed (subject as therein provided) to convey to the said mayor aldermen and citizens the said church of Saint George the Martyr and the site thereof and land belonging thereto and the said mayor aldermen and citizens have agreed (subject as aforesaid) to convey by way of exchange certain other premises in the said city and it is expedient that the said agreement should be confirmed and made binding on the parties thereto :

And whereas the lord bishop of Oxford has consented to the provisions of this Act :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Saint George's Church Oxford Act 1919.

Interpretation.

2. In this Act the following expressions have the several meanings hereby assigned to them unless there be something in the subject or context repugnant to such construction (that is to say) :—

The expression "the Vicar and Churchwardens" means the vicar and churchwardens of the parish of St. Mary Magdalene in the city of Oxford ;

The expression "the Corporation" means the mayor aldermen and citizens of the said city of Oxford ;

The expression "the church" means the church of Saint George the Martyr in the said city of Oxford ;

The expression "the bishop" means the lord bishop of Oxford for the time being; A.D. 1919.

The expression "the patrons" means the dean and chapter of the cathedral church of Christ in Oxford;

The expression "the scheduled agreement" means the agreement between the Vicar and Churchwardens of the one part and the Corporation of the other part which is set forth in the schedule to this Act;

The expression "the Broad Street premises" means the premises known as and being No. 53 Broad Street in the said city of Oxford referred to in the scheduled agreement;

The expression "the existing lease" means the lease under which the Broad Street premises are now held from the Corporation as mentioned in the Second Schedule to the scheduled agreement.

3.—(1) Subject to the provisions hereinafter contained the scheduled agreement is hereby confirmed and made binding upon the parties thereto and (subject to such consent and order of the Local Government Board as are therein referred to being obtained by the Corporation) effect may and shall be given to the said agreement. Confirming
and carry-
ing out
scheduled
agreement.

(2) Upon the execution by the Vicar and Churchwardens of the conveyance by them to the Corporation referred to in the scheduled agreement the fee simple of and in the church and the site thereof and land belonging thereto (exclusive of such glass furniture and effects as are excepted by the provisions of the scheduled agreement) shall be by virtue of this Act vested in the Corporation free from and in defeasance of the estates rights and interests therein of the bishop or of the patrons or the vicar or incumbent of the church or of any other persons or person and also free from all ecclesiastical and other trusts uses purposes obligations disabilities and restrictions whatsoever and from the act or consequences of the consecration of the church and from all rights or interests of the owners or persons interested in any seats or pews therein or of any other person and accordingly such estates rights interests trusts uses purposes obligations disabilities restrictions and consecration (as from and after such vesting) shall be and the same are hereby absolutely extinguished and vacated.

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(3) Upon the execution by the Corporation of the conveyance by them of the Broad Street premises referred to in the scheduled agreement the fee simple of and in those premises shall be by virtue of this Act vested in the Vicar and Churchwardens subject to the existing lease and to the provisions of this Act.

Closing of church.

4. The church shall be closed and disused for divine service on the vesting thereof in the Corporation or at such earlier date as may be fixed by the bishop by order under his hand.

Disposal of certain church ornaments and furniture.

5. The Vicar and Churchwardens may if they think fit after the closing and disuse of the church remove therefrom the stained glass in the windows thereof and all the furniture fittings and effects therein and in the event of such removal shall dispose of the same in such manner as they may think fit and as may be approved in writing by the bishop and such disposition shall be good and effectual in law. In giving effect to the provisions of this section in regard to any stained glass window or other object which has been given by way of memorial special regard may be had to the wishes of any of the relatives of the person in whose memory it was given.

Disposal of registers and other documents.

6. All registers deeds records books and documents belonging to or kept in the church shall before the vesting of the church in the Corporation be removed by the Vicar and Churchwardens to the church of Saint Mary Magdalene in the said city of Oxford and shall be securely kept with the registers and other documents of the last-mentioned church.

Extinction of incumbencies and other offices of church.

7. On the closing of the church for divine service or at such earlier date as may be fixed by the bishop by order under his hand the office of minister or incumbent or vicar of the church and the advowson or right of presentation or appointment thereto shall cease and be extinguished.

Provisions as to user of church by Corporation.

8. As from the date of the vesting of the church in the Corporation pursuant to the provisions of this Act they may use the same and the site thereof and land belonging thereto in such manner and for such purposes as they may think fit.

Provisions as to user of Broad Street premises.

9.—(1) As from the date of the expiration of the term or the earlier determination of the existing lease the Broad Street premises or so much thereof as shall not have been or shall not be sold and conveyed as next hereinafter provided shall subject to the provisions of this section be used as a vicarage house for

the said parish of Saint Mary Magdalene Provided that the A.D. 1919
Vicar and Churchwardens may and (if so agreed in writing
between them on the one hand and the president fellows and
scholars of Trinity College Oxford on the other hand) shall sell
and convey to the said president fellows and scholars part of
the garden of the Broad Street premises or grant to the said
president fellows and scholars perpetual or other rights of light
and air over part of the said garden and the proceeds of any
such sale or the consideration received by the Vicar and Church-
wardens for such grant shall be applied in manner provided
by the section of this Act of which the marginal note is
"Application of moneys."

(2) Subject to the provisions of this section the Vicar and
Churchwardens shall convey to the Ecclesiastical Commissioners
the Broad Street premises or so much thereof as shall not have
been so sold and conveyed as aforesaid and the Ecclesiastical
Commissioners shall hold deal with and dispose of the premises
so conveyed to them with such rights and powers and subject to
such duties and obligations as those with and subject to which
they hold other vicarage houses vested in them.

10. As from the date of the closing of the church for As to repair
divine service— fund.

(a) the moneys and investments representing the repair fund
of the church shall cease to be applicable for repairs
of the church and shall be applied in manner
provided by the section of this Act of which the
marginal note is "Application of moneys";

(b) the indenture of declaration of trust of the said repair
fund dated the twenty-seventh day of November one
thousand eight hundred and fifty and made between
the Reverend Jacob Ley of the first part John
Marriott Davenport Thomas Joy John Charles Thorp
and Thomas George Cousins of the second part and
the said Thomas Joy and John Charles Thorp of the
third part and all other deeds and documents (if any)
relating to the said fund shall become and be null
and void; and

(c) the trustees of the said fund at the said date shall
cease to hold office as such and no further trustees
thereof shall be appointed.

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Application
of moneys.

11.—(1) The moneys and investments representing at the date of the closing of the church for divine service the repair fund hereinbefore referred to shall on that date be paid and transferred by the trustees of the said fund to the Vicar and Churchwardens.

(2) The Vicar and Churchwardens shall apply the said moneys and investments and the proceeds of any such sale or the consideration for any such grant as is referred to in the section of this Act of which the marginal note is "Provisions as to user of Broad Street premises" in or towards the following purposes (that is to say):—

First In or towards the payment of the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or the reimbursement of any person who shall have paid such costs charges and expenses;

Secondly In or towards the cost of any alterations of or repairs to the Broad Street premises which they may determine upon or approve for the purpose of making the same suitable for occupation as a vicarage house;

and any balance of such moneys investments and proceeds of sale or consideration remaining after making the payments hereinbefore referred to shall be deemed to be added to and to form part of the capital moneys representing the endowment fund of the said parish of Saint Mary Magdalene and shall with the income thereof be applied accordingly.

The SCHEDULE referred to in the foregoing Act.

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AN AGREEMENT made the sixth day of November one thousand nine hundred and eighteen between the Reverend ARTHUR HERMAN GILKES the vicar of the parish of Saint Mary Magdalen with Saint George the Martyr in the city of Oxford and WILLIAM TICHBORNE UPTON and LOUIS RAMSAY VINCENT the churchwardens of the parish aforesaid (hereinafter called "the Vicar and Churchwardens") of the one part and the MAYOR ALDERMEN AND CITIZENS OF OXFORD (hereinafter called "the Corporation") of the other part.

Stamp.

Ten
shillings.

WHEREBY it is mutually agreed as follows:—

1. Subject to their being able to obtain the necessary Act of Parliament and all other (if any) necessary consents and sanctions the Vicar and Churchwardens will convey to the Corporation in fee simple the hereditaments mentioned in the First Schedule hereunder written and subject to their being able to obtain the necessary consent and order of the Local Government Board the Corporation will convey to the Vicar and Churchwardens in fee simple in exchange for such hereditaments the hereditaments mentioned in the Second Schedule hereto subject to the existing lease thereof as mentioned in the said Second Schedule.

2. The said hereditaments respectively described in the said First and Second Schedules shall be deemed to be of equal value.

3. The stained glass in the windows of Saint George's Church (the hereditaments described in the said First Schedule) and all the church furniture and effects are excepted and reserved and shall remain the property of the Vicar and Churchwardens who shall be at liberty to remove the same at any time prior to the expiration of one calendar month after the date of completion hereinafter mentioned but in the event of the Vicar and Churchwardens removing the said stained glass they shall as soon as may be erect plain glass in place of the same.

4. The completion of the said exchange of properties hereinbefore agreed upon shall take place at the expiration of two calendar months after the necessary Act of Parliament shall have been obtained by the Vicar and Churchwardens.

5. The Corporation shall forthwith apply for the necessary order of the Local Government Board for its sanction to the said exchange

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6. Should either the said Act of Parliament not be obtained or the sanction of the Local Government Board be refused to this agreement then in either case the same shall be void and of no effect.

7. The title on each side shall be accepted.

As witness the hands of the Vicar and Churchwardens and the common seal of the Corporation the day and year first above written.

Witness to the signature of the said Reverend
Arthur Herman Gilkes—

M. H. GILKES

38 Beaufort Mansions

Chelsea S.W. 3.

Captain 21st London Regiment.

A. H. GILKES.

Witness to the signature of the said William
Tichborne Upton—

CHAS. F. THORNEWILL

2 Tackley Place Oxford

Clerk in Holy Orders.

W. T. UPTON.

Witness to the signature of the said Louis
Ramsay Vincent—

THOMAS G. SMITH

37 St. John Street Oxford

Parish Clerk.

LOUIS R. VINCENT.

The common seal of the mayor aldermen and
citizens of Oxford was hereunto affixed
by order of the council in the presence
of—

R. BACON

Town Clerk

Oxford.

Seal.

THE FIRST SCHEDULE.

The freehold land situate on the north side of George Street in the city of Oxford with the building thereon being the church of Saint George the Martyr as shown on the Plan Number 1 hereto annexed and thereon coloured pink.

THE SECOND SCHEDULE.

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The freehold dwelling-house gardens and premises situate on the north side of Broad Street in the said city of Oxford and known as No. 53 in Broad Street aforesaid as the same are now leased to the executors of the late Robert Walter Doyne for the residue of a term of forty years from the twenty-fifth day of March one thousand eight hundred and eighty-four at the yearly rent of £2 19s. 8d. and so shown on the Plan No. 2 hereto annexed and therein coloured blue.

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